



Banc Ceannais na hÉireann
Central Bank of Ireland
Eurosystem

Consumer Protection Code

Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Consumer Protection) Regulations 2025

Part 6: Final Provisions and Revocations

418. Revocations

(1) The following are revoked:

- (a) Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Licensed Moneylenders) Regulations 2020 (S.I. No. 196 of 2020);
- (b) Central Bank (Supervision and Enforcement) Act 2013 (Section 48(1)) (Insurance Requirements) Regulations 2022.

(2) The revocation of the Consumer Protection Code as amended, the Code of Conduct on Mortgage Arrears as amended, the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Licensed Moneylenders) Regulations 2020, or the Central Bank (Supervision and Enforcement) Act 2013 (Section 48(1)) (Insurance Requirements) Regulations 2022 does not -

- (a) affect any direction given by the Bank, investigation undertaken, or disciplinary, sanctioning or enforcement action undertaken by the Bank or any other person, in respect of any matter in existence at, or before, the time of the revocation, or
- (b) preclude the taking of any legal proceedings, or the undertaking of any investigation, or disciplinary, sanctioning or enforcement action by the Bank or any other person, in respect of any contravention of an enactment or requirement imposed under an enactment, or any misconduct which may have been committed before the time of the revocation.

419. Amendments

(1) Regulation 4(c) of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48(1)) (Housing Loan Requirements) Regulations 2022 is substituted with the following:

"(c) without limiting the generality of paragraph (b), a housing loan entered into as part of the mortgage arrears resolution process described in provision 16 of the Code of Conduct on Mortgage Arrears issued by the Bank or as part of the mortgage arrears resolution process described in Regulation 238 of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Consumer Protection) Regulations 2025."

(2) Regulation 4(3) and (4) of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48(1)) (Investment Firms) Regulations 2023 (S.I. No. 10 of 2023) is substituted by the following:

"(3) An investment firm shall -

- (a) not change its name without the prior written approval of the Bank,
- (b) notify the Bank within 5 working days, in writing, of any change to the investment firm's registered office address, postal address, telephone number or email address,
- (c) where issuing correspondence relating to regulated activities, state on the investment firm's headed paper that it is regulated by the Bank, and
- (d) take appropriate steps to mitigate the risk that a customer will understand an activity to be, or to carry the protections of, a regulated activity where this is not the case, including through clearly distinguishing between the firm's regulated activities and its unregulated activities.

(4) An investment firm shall not provide the Bank, in purported compliance with supervisory and regulatory requirements, with information which it knows or ought reasonably to know to be false or misleading in a material respect.

(5) In this Regulation –

"regulated activities" means the provision of financial services, including financial products, that are provided in this State by an investment firm and which are subject to the regulation of the Bank;

"unregulated activities" means the provision of services of a financial nature, which are not otherwise regulated activities, to consumers in the State."

420. Failure to comply with these Regulations

A failure by a regulated entity to comply with any requirement or obligation imposed pursuant to these Regulations is a prescribed contravention for the purpose of the administrative sanctions procedure under Part IIIC of the Act of 1942 and may be subject to enforcement action and the imposition of administrative sanctions by the Bank in accordance with that Part.